

IDAHO POWER OF ATTORNEY FOR DELEGATING PARENTAL POWERS

(To a grandparent, sibling of parent, or sibling of the minor child.)

____ (Parent/Guardian Name), a parent or guardian of the minor child,
____ (Child's Name), born _____ (Child's Date of Birth),
pursuant to Idaho Code Section 15-5-104, delegates his/her/their parental powers to
____ (Attorney-in-Fact's Name) of _____ (Street Address),
in the city of _____, state of Idaho, who is a/an _____
(Relationship) to the minor child.

This delegation of power includes all powers regarding the care, custody, and property of the minor child except the power to consent to marriage or adoption of the minor child.

This power expressly ☐ allows ☐ does not allow my delegate to travel outside the United States with the minor child.

This power of attorney shall remain in full force and effect for _____ (Term Length), unless earlier revoked by me in writing.

Parent/ Guardian Signature

STATE OF IDAHO)
 : ss
County of _____)

On the ____ day of _____, 20____, before me, a Notary Public, personally appeared _____, known or identified to me to be the person whose name is subscribed to the within or foregoing instrument, and acknowledged to me that he/she/they executed the same.

Notary Public

Residing at _____

Commission expires: _____

INSTRUCTIONS UPON COMPLETION OF THE FAMILY MEMBER PARENTAL POWER OF ATTORNEY

Caution: It is always advisable to talk to a lawyer before signing any power of attorney.

1. Before you (the child's parent or guardian) sign a power of attorney concerning your child/ren, discuss your intention to do so with the person you want to make decisions for the child/ren. Make sure this person, called an "attorney-in-fact" understands their responsibilities for the child/ren and how long you wish them to have this authority.
2. Before you sign the completed power of attorney review it for completeness and accuracy.
3. While the Family Member Parental Power of Attorney does not have to be notarized (signed in the presence of a notary) you may want to do so to help prove authenticity. Generally speaking, certifying a power of attorney via notary public is considered common practice, so having it notarized may make third parties (such as doctors, daycare provider, financial institutions and others) more inclined to honor the power of attorney.
4. Once you sign the power of attorney, give the original to the attorney-in-fact and keep a copy for your records.
5. As parent or guardian, you may also wish to give a copy of the power of attorney to your child's school, daycare provider, doctor and other persons with whom your child interacts. This way if they have questions or concerns, they can discuss them with you first.
6. To avoid confusion or conflict, you may wish to tell friends and family that you are signing the power of attorney and the name of the attorney-in-fact.
7. To avoid personal liability, the attorney-in-fact must give notice to those they deal with on behalf of your child/ren that they are acting under the authority of a power of attorney. For example, Jane Doe, who is going away for a month signs a power of attorney making her brother, John Doe, an attorney-in-fact for her son, Rick Doe, while she is away. John must enroll Rick in school while Jane is unavailable. To give the school notice that he is acting under a power of attorney, John must give the school a signed copy of the document and sign Rick's school registration forms as "John Doe, attorney-in-fact for Rick Doe."
8. A parent or guardian can revoke a power of attorney over the child/ren at any time. The best way to do so is in writing. Give a dated copy of the revocation (written notice that you have revoked power of attorney) to the attorney-in-fact and keep a copy for your records. You may also wish to give a copy of the revocation to the school, doctor, and any others who have worked with the attorney-in-fact so that they understand that the attorney-in-fact no longer has the authority to act on behalf of the child/ren.